

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JAMES PUI CHENG,

Petitioner

VS.

LI CHAN LIN,

Respondent

) Case Number: FDI-24-800045

) Hearing Date: September 10, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, PROPERTY CONTROL,
ENFORCE JUDGMENT BY COURT-SUPERVISED SALE OF 1216 32ND AVE, S.F.; WRIT OF
POSSESSION; APPOINT ELISOR; RESERVE \$35,000 FROM SALE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

1) The parties in this matter are Petitioner James Cheng (Husband) and Respondent Li Lin (Wife).

The parties married on 3/1/2002. The parties disagree regarding their exact date of separation but
they agree they separated in 2018, for a marriage of at least 16 years. Husband is represented by
Tsao-Wu & Yee LLP.

2) On 12/11/2025, a Stipulated Judgment was entered in this matter which incorporated the Marital
Settlement Agreement signed by the parties in October 2025. The Judgment provides in relevant
part:

a. The residence located at 1216 32nd Ave. San Francisco, CA 94122 shall be disposed of
according to the terms of this section.

- 1 b. The residence has been listed for sale and shall remain listed for sale with broker
2 PATRICK MAN (DRE #01147538), and with mutually satisfactory terms of sale,
3 including sales price, until sold.
- 4 c. During the listing of the residence for sale, the parties shall each cooperate in showing the
5 residence to brokers, agents and prospective purchasers, and in causing the residence to
6 be sold.
- 7 d. Upon sale of the property, the net proceeds shall be disbursed as provided below. The
8 term "net proceeds" shall mean gross sales proceeds less the following: (a) Escrow
9 charges; (b) The balances remaining at the time of sale on trust deed encumbrances
10 existing on the date of this Agreement; (c) Usual expenses of sale, including any broker's
11 commissions and other normal costs assessed through escrow; and, (d) Payment to Wife
12 in the amount of \$100,000.00, to satisfy the loan made by her sister toward the
13 downpayment on the residence.
- 14 e. The net proceeds of sale shall be divided equally between the parties. Payment to the
15 parties shall be by separate checks or wire transfers directly from escrow.
- 16 f. The monies due Husband from the sale of the residence shall be reduced by sums
17 necessary to satisfy the Family Law Attorney's Real Property Lien in favor of TSAO-WU
18 & YEE LLP recorded August 14, 2025, in Official Records of the City and County of
19 San Francisco, as document no. 2025066817, which shall be Husband's sole
20 responsibility.
- 21 g. One-half of any capital gains resulting from the sale of the residence shall be paid by
22 each party.
- 23 h. The court in any dissolution of marriage proceeding shall reserve jurisdiction to enforce
24 the provisions of this section in the event a dispute arises between the parties, or at any
25 time when it is appropriate to do so, and to make further orders as may be required,
26 including but not limited to naming a successor broker and/or agent in the event
27 PATRICK MAN becomes unable or unwilling to act as broker, establishing terms of sale
28 and sales price, ordering a sale on terms and conditions which may seem proper to the
29 court, determining the need and liability for improvements, replacements and repairs, and

1 ordering payment of obligations and expenses associated with the residence. Either
2 Husband or Wife may apply to the court for any of these orders. Each party shall perform
3 all acts and execute all listing agreements, escrow instructions, deeds, documents and
4 other papers necessary or convenient to carry out the terms of this section. In the event
5 either party fails or refuses to do so upon request, the court may order the Clerk of the
6 Superior Court or the Clerk's designee to execute documents on his or her behalf.

7 3) On 8/18/2026, Husband filed an ex parte Request for Order seeking an order shortening time.

8 Husband states that Wife is now demanding that she be permitted to buy out Husband's interest in
9 the 32nd Ave. residence. Husband states they have received a "good" offer of \$1.78 million for the
10 residence which expires by its terms on 9/30/2026, but Wife has refused to sign the papers needed
11 to accept the offer. Husband is asking the Court to:

- 12 a. Order Wife to vacate the residence by a reasonable date certain and permit Husband to
13 possess the residence.
- 14 b. Issue a Writ of Possession in the event it is needed.
- 15 c. Supervise the sale and order that the current offer be accepted. Appoint an elisor to sign
16 on Wife's behalf "all listing agreements, escrow instructions, deeds, documents, and
17 other papers necessary or convenient to carry out the order for sale of the residence."
- 18 d. Reserve \$35,000 from Wife's share of the net proceeds, payable directly from escrow to
19 Husband's attorney-client trust account to be reserved for claims by Husband against
20 Wife for (i) rental proceeds received by Wife following entry of Judgment that Wife did
21 not share with Husband, (ii) payments Wife failed to make for PG&E bills for the
22 residence, and (iii) attorney's fees sanctions.
- 23 e. In the alternative, "keep Mr. Man on the job, and adjust the listing price as might be
24 needed and proper after considering his recommendation and the corresponding
25 suggestions of the parties."

26 4) Per the Temporary Emergency (Ex Parte) Orders filed 8/18/2026, the Court granted Husband's
27 request for an order shortening time and set the hearing on Husband's 8/18/2026 Request for
28 Order for 9/10/2026.
29

- 1 5) On 8/19/2026, listing agent Patrick Man filed a declaration. Mr. Man states that he was joint
2 retained by the parties on 8/15/2025 to sell the residence. Mr. Man states that Husband vacated
3 the residence and "It would be easier to sell the residence if it was vacant." Mr. Man states that
4 the parties received two offers on the residence, the first offer was for \$1.575 million (which was
5 rejected at Husband's request). The second offers is for \$1.78 million. Mr. Man states, "I am
6 willing to continue to serve as the broker in this case. I cannot and do not take sides in the dispute
7 between the clients... I will, however, abide by whatever decisions the judge makes in this case
8 regarding the sale of the residence."
- 9 6) On 8/28/2026, Wife filed a Responsive Declaration. Wife states that she moved out of the
10 residence in September 2025 but would occasionally return to the house to pick up mail. Wife
11 also states that both parties still have personal items in the house. Wife states that she offered to
12 purchase the residence from Husband at a price of \$1.8 million and there is "no reason why the
13 Petitioner would not sell the property to me." Wife states she was under the assumption the
14 parties were still negotiating. Wife states that she agreed to accept the \$1.78 million offer, but
15 Husband refused to drop the hearing. Wife states that she objects to the request that funds from
16 her portion of the net sale proceeds be withheld (Wife does not state the basis for her objection).
17 Wife also states that she has signed the paperwork to accept the \$1.78 million offer.
- 18 7) On 9/1/2026, listing agent Patrick Man filed a declaration. Mr. Man confirms that Wife has now
19 signed the purchase agreement. Mr. Man states that it is unknown whether Wife has fully vacated
20 the residence because she still had belongings in the residence the last time he saw. Mr. Man
21 states, "Due to the recent increases in S.F. property values, and at the urging of Mr. CHENG, the
22 buyer increased her offer to \$1.95 million. Both the buyer and the sellers have signed a revised
23 purchase agreement for this amount" which Mr. Man attached as Exhibit 2.
- 24 8) On 9/1/2026, Husband filed a Request for Judicial Notice asking the Court to take judicial notice
25 of a Notice of Federal Tax Lien recorded by the IRS on 10/1/2019 which shows an "unpaid
26 balance of assessment" of \$33,296.55.
- 27 9) On 9/1/2026, Husband filed a Reply Declaration. Husband states that on 3/2/2026, he went with a
28 maid to the residence to do some clean up. Wife asked the maid, "What are you doing in my
29 house," punched the maid in the face, and beat the maid unconscious with a mop handle.

1 Husband states Wife was arrested. Therefore, Wife's statement that she moved out of the
2 residence in September 2025 is untrue. Husband states that Wife has still not removed her
3 belongings from the residence and asks the Court to grant him temporary possession of the
4 residence within 7 days, and a writ of possession, so that Husband can store Wife's belongings in
5 a storage unit. Husband states that Wife now says she will not sign any escrow instructions for
6 her to pay her share of the residence expenses. Husband reiterates his request that an elisor be
7 appointed and that \$35,000 be set side from Wife's share of the net proceeds to cover: Husband's
8 \$15,000 sanctions request, \$11,250 for rent for January 2026 – September 2026, \$737 for Wife's
9 half of insurance premiums, \$550 that Husband paid to PG&E, \$13,408.65 for half of the IRS tax
10 debt (the IRS has offered a settlement amount of \$26,817), less \$8,824 (which Husband contends
11 he owes for half of the mortgage for nine months).

12 10) On 9/1/2026, Husband's attorney Suzan Yee filed a Reply Declaration wherein Ms. Yee contests
13 many of the statements made by Wife in her Responsive Declaration. Ms. Yee also states that she
14 informed Wife that she would be seeking the maximum attorney's fees award for her lack of
15 cooperating and disobedience of the judgment.

16 **B. Findings and Order**

- 17 1) If Wife has not already done so, Wife shall sign the revised purchase agreement (for \$1.95
18 million) no later than Friday, 9/11/2026 at 5:00 PM.
- 19 2) Wife shall sign any and all documents necessary to complete the sale of the residence located at
20 1216 32nd Ave. San Francisco, CA 94122 within 24 hours of being presented with the document
21 for her signature. If Wife fails to sign any document necessary to sell the 32nd Ave. residence
22 within 24 hours of presentation, Husband may file an ex parte Request for Order to request that
23 an elisor be appointed to sign on Wife's behalf. Husband shall attach to his ex parte Request for
24 Order copies of the documents he requests that the elisor sign.
- 25 3) Wife shall remove all of her belongings from the residence located at 1216 32nd Ave. San
26 Francisco, CA 94122 no later than Thursday, 9/17/2026 at 5:00 PM. If Wife fails to comply with
27 this order, the Court intends to award any costs Husband incurs to remove and store Wife's
28 belongings from the residence.
- 29

- 1 4) Effective Thursday, 9/17/2026 at 5:00 PM, Husband is granted temporary exclusive use and
2 possession of the residence located at 1216 32nd Ave. San Francisco, CA 94122 for the purpose of
3 preparing the residence for sale. Wife shall not be permitted to enter the residence starting
4 Thursday, 9/17/2026 at 5:00 PM. If Wife fails to surrender possession of the residence by
5 Thursday, 9/17/2026 at 5:00 PM, Husband may file an ex parte Request for Order to which he
6 attaches a proposed Writ of Possession.
- 7 5) \$35,000 from Wife's share of the net proceeds shall be deposited into a separate, interest-bearing
8 account in Husband's name. This \$35,000 shall be reserved while the Court adjudicates claims by
9 Husband against Wife for (i) rental proceeds received by Wife following entry of Judgment that
10 Wife did not share with Husband, (ii) payments Wife failed to make for PG&E bills for the
11 residence, (iii) attorney's fees sanctions, (iv) Wife's share of the outstanding tax liability, (v)
12 Wife's share of insurance premiums, and (vi) any costs incurred by Husband due to Wife's failure
13 to comply with any of the orders set forth above. Neither party is permitted to withdraw any
14 amount from this account absent written agreement of the parties or a Court order. The escrow
15 instructions shall address the reservation of \$35,000 from Wife's share of the net sale proceeds,
16 and Wife shall sign escrow instructions which include this information. The Court hereby sets a
17 review hearing for **Thursday, 12/10/2026 at 9:00 AM in Dept. 404** to adjudicate this \$35,000. In
18 advance of this hearing date, the parties shall meet and confer to determine how this \$35,000
19 should be distributed. If the parties are unable to reach an agreement, at least 10 calendar days
20 prior to the next hearing date, both parties shall file and serve declarations (not to exceed 10
21 pages in length not including exhibits) explaining how the Court should divide this \$35,000. The
22 parties shall attach as exhibits any documents which support their claims.
- 23 6) Husband's attorney shall prepare the Findings and Order After Hearing.
- 24 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
25 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
26 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
27 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
28 proposed order after hearing directly to the court. Failure to submit the order after hearing within
29

1 10 days may allow the other party to prepare a proposed order and submit it to the court in
2 accordance with CA Rules of Court, Rule 5.125(d).